

STATE OF NEW YORK

8363--A

2025-2026 Regular Sessions

IN SENATE

June 5, 2025

Introduced by Sens. FERNANDEZ, ADDABBO -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Alcoholism and Substance Use Disorders in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing the individual counseling for integrated care rate enhancement act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "individual
2 counseling rate enhancement act".

3 § 2. The mental hygiene law is amended by adding a new section 19.18-d
4 to read as follows:

5 § 19.18-d Individual counseling rate enhancement.

6 1. The office shall establish a rate enhancement for reimbursement of
7 individual psychotherapy services provided to individuals by a mental
8 health counselor licensed pursuant to article one hundred sixty-three of
9 the education law or a clinical social worker licensed pursuant to arti-
10 cle one hundred fifty-four of the education law or a psychologist
11 licensed pursuant to article one hundred fifty-three of the education
12 law where such services are provided in outpatient substance use disor-
13 der clinics licensed pursuant to article thirty-two of this chapter.
14 Such rate shall be no less than the rate established by the office for
15 individual counseling in effect on the first of April next succeeding
16 the date on which this section takes effect plus a service rate of 50%.

17 2. The office shall promulgate regulations to implement the rate
18 enhancement set forth under this section. In developing such rates the
19 office, in consultation with the department of health, shall, if neces-
20 sary, pursue federal Medicaid participation and reimbursement. Within
21 thirty-six months of the establishment of the enhanced rate, the office

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 shall evaluate and report whether the access to integrated mental health
2 and addiction recovery services increased. The office shall transmit
3 such report to the governor, the temporary president of the senate, the
4 speaker of the assembly, the minority leader of the senate and the
5 minority leader of the assembly.

6 § 3. This act shall take effect immediately.